

		Instead, the Court finds the City’s alternative request for a preliminary injunction ordering Defendant to correct the violations to be more appropriate. In cases involving a legislatively declared nuisance per se, an injunction may issue without proof of irreparable injury. (<i>People ex rel. Dept. Pub. Works v. Adco Advertisers</i> (1973) 35 Cal.App.3d 507, 511-512.) “[T]o be considered a nuisance per se the object, substance, activity or circumstance at issue must be expressly declared to be a nuisance by its very existence by some applicable law. [Citation.] [W]here the law expressly declares something to be a nuisance, then no inquiry beyond its existence need be made. [Citation.] Nuisances per se are so regarded because no proof is required, beyond the actual fact of their existence, to establish the nuisance. [Citation.]” (<i>City of Claremont v. Kruse</i> (2009) 177 Cal.App.4th 1153, 1163-1164, internal quotations omitted.) The Laguna Beach Municipal Code section 7.24.020(a) defines a public nuisance as, among other things, any use or condition of property that poses a danger to human life or is unsafe or detrimental to the public health, safety, or welfare. Therefore, the noted substandard conditions which are dangerous, such as a rotted and structurally unsound deck, unpermitted and illegal electrical and other construction, and exposed electrical switches and outlets, constitute a public nuisance per se. Defendant does not dispute this point. In light of the above, the City’s request for a preliminary injunction is GRANTED and Defendant is ORDERED to bring the subject property into compliance with the Laguna Beach Municipal Code within 90 days from the date of this order. City to give notice.
7.	30-2023-01329772 Jing vs. Di Luzio	Motion for Sanctions Based on applicable law, Defendant Andrew Diluzio’s (“Defendant”) Motion for Sanctions is DENIED. Defendant seeks monetary sanctions pursuant to CCP §128.7 against Plaintiffs and their counsel on the grounds that the claims in the Complaint were not warranted under existing law, nor under a good-faith argument that the law should be changed or extended. By presenting a pleading to the court, an attorney or unrepresented party is certifying that, to the best of the person’s knowledge, information and belief, formed after an inquiry reasonable under the circumstances that all of the following conditions are met: (1) it is not being presented primarily for an improper purpose; (2) the claims, defenses, or other legal contentions are warranted by existing law or by a nonfrivolous argument for the extension, modification or reversal of existing law or the establishment of new law; (3) the allegations and other factual contentions have evidentiary support, or if specifically so identified, are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery; and

		(4) the denials of factual contentions are warranted on the evidence or, if specifically so identified, are reasonably based on a lack of information or belief. (CCP §128.7(b).) If a pleading does not meet those conditions, a party may bring a motion for sanctions. (CCP §128.7(c)(1).) The purpose of permitting such a motion is remedial, not punitive. The goal is not to punish the offender but to promote compliance and deter frivolous filings. (<i>Malovec v. Hamrell</i> (1990) 70 Cal.App.4th 434, 440.) The determination of violation is made under an objective standard. (<i>Bockrath v. Aldrich Chem. Co., Inc.</i> (1999) 21 Cal.4th 71, 82.) A claim is “objectively unreasonable” if any reasonable attorney would agree that it is totally and completely without merit. (<i>Peake v. Underwood</i> (2014) 227 Cal.App.4th 428, 440.) Here, Defendant served a safe harbor letter with a copy of the motion attached on Plaintiffs on 10/3/24. (Ainslie Decl. ¶6, Exh. 3.) While the court notes that the motion is not attached to the copy of the letter that was supplied to the court, the court assumes for purposes of this ruling that the motion was properly attached. Plaintiffs have not raised any objections to the service of the safe harbor letter. Defendant contends that filing and prosecuting the Complaint was objectively unreasonable because it was barred in its entirety by res judicata. While it is true that on 1/9/25 this Court granted Defendant’s Motion for Judgment on the Pleadings, finding that the action is barred by res judicata based on an earlier small claims action, the Court does <i>not</i> find that filing and prosecuting the Complaint was objectively unreasonable. (ROA 68.) The determination as to whether res judicata applied in this instance was not straightforward. It was not objectively unreasonable to attempt to pursue Plaintiffs’ claims. Accordingly, the motion is DENIED. Defendant’s requests for judicial notice are granted. Defendant to give notice.
8.	30-2022-01252770 Brown vs. Azera	1. Motion to Compel Answers to Form Interrogatories 2. Motion to Compel Production 3. Motion to Deem Facts Admitted Plaintiff moves to compel Responses to Requests for Production, Set One and Form Interrogatories – Construction Litigation, Set One, and to deem Requests for Admission, Set Two, admitted against Defendant Martin Thibault. Plaintiff requests \$1,000 in sanctions for the motion to compel production. Plaintiff does not request sanctions for the other two motions. In opposition, Defendant argues that the discovery responses were timely provided. The Court agrees.